

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM06
HON. JUDGE Megan L. Wagner

Date: 06/17/2026

Court Room Rules and Notices

#	Case Name	Tentative
	Flint - Trust (2020 - 01127509)	MOTION TO REINSTATE CHERI O'LAVERY AS TRUSTEE Harry Guy Flint's Motion to Reinstate Cheri O'Lavery as Trustee or in the alternative to Make Her Cotrustee with Another Trustee (ROA 1736) is DENIED. By his motion, Harry Guy Flint seeks to reinstate Cheri O'Lavery (O'Lavery) as trustee of The Flint Family Trust (Trust). O'Lavery was appointed successor trustee, by order of this court, on December 2, 2022 (ROA 469). She was suspended as successor trustee, by order of this court, on August 9, 2024 (ROA 1161). She was suspended, in part, because of her unwillingness/inability to comply with the orders of this court. Probate Code section 17206 provides this court with the discretion to select a trustee for the Trust. It reads, in full: "The court in its discretion may make any orders and take any other action necessary or proper to dispose of the matters presented by the petition, including appointment of a temporary trustee to administer the trust in whole or in part." The probate court has "inherent power to decide all incidental issues necessary to carry out its express powers to supervise the administration of the trust." (<i>Barefoot v. Jennings</i> (2020) 8 Cal.5th 822, 829.) That power includes the ability to remove or suspend a trustee and appoint a new trustee. (<i>Schwartz v. Labow</i> (2008) 164 Cal.App.4th 417, 427-428.) Here, the court exercised its discretion to suspend O'Lavery's powers as trustee and appoint Jason Rubin, a private professional fiduciary, as successor trustee of the Trust. The court acknowledges there is an issue raised by Harry Guy Flint in the ex parte application filed 6/16/26 with respect to the Court's appointment of Jeffrey Siegel as successor trustee. However, given the extensive and troubled history of this case and the difficulties the Trust faced during O'Lavery's prior term as trustee, the court believes either Siegel or another private professional fiduciary will be the most appropriate trustee for the Trust. The motion is DENIED. The court will give notice.
